

**CITY OF
MT. WASHINGTON**

**POLICE OFFICERS COLLECTIVE
BARGAINING ORDINANCE
Ordinance 2024-03**

ORDINANCE NUMBER 2024-03

AN ORDINANCE OF THE CITY OF MT. WASHINGTON, KENTUCKY CONCERNING THE CREATION OF A COLLECTIVE BARGAINING PROGRAM WITH THE MT. WASHINGTON LAW ENFORCEMENT OFFICERS AND THE CITY OF MT. WASHINGTON, KENTUCKY

WHEREAS, THE CITY COUNCIL HAS DETERMINED THE ADVANTAGES OF COLLECTIVE BARGAINING WITH THE LAW ENFORCEMENT OFFICERS:

NOW, THEREFORE, BE IT ORDAINED BY THE COUNCIL OF THE CITY OF MT. WASHINGTON, KENTUCKY as follows:

SECTION I

The City of Mt. Washington City Council hereby establishes a policy of the City of Mt. Washington to participate in collective bargaining with duly authorized representatives of Mt. Washington, Kentucky police officers. To effect that policy, the following procedures shall be utilized.

SECTION II

- A. In the event a petition for recognition as collective bargaining representative of a group of police officers of the Mt. Washington Police Department is presented to the Mayor, the Mayor shall cause to be conducted a preliminary investigation to verify that such petition is bona fide and that it presents a question whether the petitioning organization represents the officers of the Police Department.
- B. If the preliminary investigation indicates that the petition is bona fide and presents a question whether the petitioning organization represents the police officers, the Mayor shall cause to be conducted a secret ballot election among the officers.
- C. If such election determines that the police officers desire to be represented in collective bargaining by the petitioning organization, the Mayor shall present those results to the City Council. The City Council may then pass an ordinance recognizing the petitioning organization as the exclusive bargaining representative of the unit of officers.
- D. Not more than one such election for any group of officers shall be conducted in any one calendar year. Once a union or other organization is so recognized, such recognition shall continue in force from year to year thereafter unless repealed by validly passed and signed ordinance.

SECTION III

- A. Following passage and approval of an ordinance recognizing an organization as the collective bargaining representative of a unit of police officers, the Mayor shall act as negotiator on behalf of the City of Mt. Washington and meet with representatives of the union or organization for the purpose of negotiating a collective bargaining agreement regarding the terms and conditions of employment of the police officers in the unit. The parties shall meet and bargain in good faith to reach such an agreement.

- B. Upon the reaching of a tentative agreement regarding a collective bargaining agreement, an ordinance containing a collective bargaining agreement shall be presented to the City Council for its action, and, on passage and approval of such ordinance, it shall become a contract binding on all parties for a term not to exceed the biennium or the existing term of the incumbent members of the City Council. Upon expiration of a collective bargaining agreement, the parties shall negotiate in good faith for a new agreement.

SECTION IV

Petitions for decertification of a recognized collective bargaining representative shall be processed in a manner consistent with the process for recognition set forth above, subject to the limitations that (a) no decertification election shall be conducted among officers of the same unit within a year of an election for recognition or any other election for decertification, and (b) no election shall be conducted during the term of a collective bargaining agreement applicable to the unit of officers in question.

SECTION V

Officers at or above the rank of Lieutenant Colonel or Major shall not be included in the unit of officers represented by a union or other organization for collective bargaining purposes.

SECTION VI

Strikes and slowdowns by officers of the Mt. Washington Police Department shall be strictly prohibited, and shall, without waiver of any other remedies or relied, constitute grounds for immediate termination.

SECTION VII

This Ordinance shall be published according to law.

The effective date of this Ordinance shall be the date on which the Ordinance is published according to law.

Should any part of this Ordinance, including but not limited to, any section, subsection, paragraph, sentence, line, clause, phrase, or any other portion of this Ordinance, is declared illegal or unconstitutional, or otherwise invalid by a Court of competent jurisdiction, such declaration shall not affect the remaining portions hereof. Any agreement currently in effect shall remain in effect in accordance with the terms of the agreement and this, and all applicable, ordinances.

The City Clerk is hereby authorized to publish this ordinance in accordance with the Kentucky Revised Statutes.

Given first reading at a regular meeting of the City Council of the City of Mt. Washington Bullitt County, Kentucky, on this 22nd day of January 2024.

Given a second reading at a regular meeting of the City Council of the City of Mt Washington, Bullitt County, Kentucky, on this 12th day of February 2024.

Adopted this 12th day of February 2024.

Results of the Roll Call Vote are as follows:

	YES	NO	ABSTAIN
Layne Abell	<u> X </u>	<u> </u>	<u> </u>
Troy Barr	<u> X </u>	<u> </u>	<u> </u>
Greg Gentry	<u> X </u>	<u> </u>	<u> </u>
Bruce Gooden	<u> X </u>	<u> </u>	<u> </u>
Sandra Hockenbury	<u> X </u>	<u> </u>	<u> </u>
Curt Hudson	<u> X </u>	<u> </u>	<u> </u>

Stuart Owen
Mayor

ATTEST:

Harry Webster
City Administrator